

IN THE SUPREME COURT OF BANGLADESH  
HIGH COURT DIVISION  
(CIVIL REVISIONAL JURISDICTION)

**Present:**

**Mr. Justice Md. Moinul Islam Chowdhury**

**CIVIL REVISION NO. 1198 OF 2020**

**WITH**

**CIVIL REVISION NO. 1195 OF 2020**

**IN THE MATTER OF:**

An application under section 25 of the Small  
Cause Courts Act, 1887.

-And-

**IN THE MATTER OF:**

Md. Abdullahel Kafi

---Defendant-Petitioner.

-Versus-

Dr. Mahbub-E-Ilahi Khan Choudhury

---Plaintiff-Opposite Party.

(in C. R. No. 1198 of 2020)

Md. Shah Alam

---Defendant-Petitioner.

-Versus-

Dr. Mahbub-E-Ilahi Khan Choudhury

---Plaintiff-Opposite Party

(in C. R. No. 1195 of 2020)

**Mr. Ashfaqur Rahman**, Advocate

---For the Petitioner

(in both cases).

**Mr. Md. Monowar Hossain**, Advocate

---For the Opposite Party

(in both cases)

**Heard on: 12.11.2023, 15.11.2023,**  
**16.11.2023 and 23.11.2023.**

**Judgment on: 23.11.2023.**

These 2 (two) common types of Rules were issued by this  
court involving similar facts and law, thus, these 2 (two) Rules

were heard together and also taken up for delivering by the following common judgment.

At the instance of the defendant-petitioner, Md. Abdullahel Kafi, the Rule was issued in the Civil Revision No. 1198 of 2020 upon a revisional application filed under section 25 of the Small Cause Courts Act, 1887 calling upon the opposite party to show cause as to why the judgment and decree dated 21.01.2020 passed by the learned Senior Assistant Judge and Small Cause Court, Sadar, Rangpur in the SCC Case No. 03 of 2015 should not be *set aside*.

The relevant facts for disposal of this Rule, *inter alia*, are that the plaintiff-opposite party Dr. Mahbub-E-Ilahi Khan Chowdhury as the plaintiff filed SCC Suit No. 03 of 2015 in the Court of the learned Senior Assistant Judge, Sadar, Rangpur for ejectment of the defendant-petitioner from the suit land as being the monthly tenant and possession purchaser. The plaint further contains that a tenancy agreement dated 30.03.1991 was held with the defendant-petitioner for a period of 8 (eight) years relating to a shop with the measurement of 250 sqft by fixing a rent at Tk. 500/- (five hundred) monthly {Tk. 02/- (two) per square feet}. The said agreement was extended by mutual

agreement until 30.03.2007 but the terms and conditions were fixed as per the agreement made earlier in the year 1991. The present plaintiff-opposite party succeeded the suit premises along with other co-sharers after the death of the said Choudhury Monsur Hossen Khan. The existing tenure of the agreement was extended until 30.03.2007 by mutual agreement and during the continuation of the said agreement Rangpur City Corporation acquired some portion of the suit property of the said “Mansur Bhaban” which was demolished for extension of the road which caused damage of the structure of the suit building, as such, most of the shop tenants left the building. The defendant-petitioner constructed an RCC Pillar in the premises due to the demolition of the suit shop in violation of the oral agreement. In the above given facts, the present plaintiff-opposite party (Landlord) decided to demolish all existing structures and obtained an appropriate plan to construct a 6<sup>th</sup>-storied building after obtaining permission from the Rangpur City Corporation. All the other shop tenants left the building because of unsafe and unusable shops after the said demolition by the Rangpur City Corporation (Government). In such a situation the shop which is the subject matter of these 2 (two) Rules. The said plaintiff-opposite party

requested the present defendant-petitioner to vacate the premises and lastly, on 04.05.2015, the opposite party issued legal notice under section 106 of the Transfer of Property Act for vacating or transfer of the suit property upon which the defendant-petitioner did not vacate the possession of the suit premises (shop).

At the instance of the defendant-petitioner, Md. Shah Alam, the Rule was issued in the Civil Revision No. 1195 of 2020 upon a revisional application filed under section 25 of the Small Cause Courts Act, 1887 calling upon the opposite party to show cause as to why the judgment and decree dated 21.01.2020 passed by the learned Senior Assistant Judge and Small Cause Court, Sadar, Rangpur in the SCC Case No. 02 of 2015 should not be *set aside*.

The relevant facts for disposal of this Rule, *inter alia*, that the present opposite party, Dr. Mahbub-E-Ilahi Khan Chowdhury as the plaintiff filed SCC Suit No. 02 of 2015 in the Court of the learned Senior Assistant Judge and Small Cause Court, Sadar, Rangpur for ejectment of the defendant from the suit land (shop) as being the monthly tenant and possession purchaser. The plaint further contains that Md. Shah Alam, upon the facts described above in another Rule, *inter alia*, are that the predecessor of the

present opposite party entered into an agreement on 01.04.1995 containing a shop measuring 250 sqft in the “Mansur Bhaban” as a monthly tenant and after the death of the said original owner the present plaintiff-opposite party succeeded the suit land but the said agreement was continued. In the meantime, Rangpur City Corporation acquired some portion of the suit property (shop) and caused the removal of some structural RCC Pillars in order to extend the existing road, as such, the suit property became risky and unusable property. However, the tenant constructed an RCC Pillar subsequently without permission from the present plaintiff-opposite party (Landlord). All other tenants vacated the shops occupying and left the building as the property became risky but the present petitioner did not vacate the shop, thus, a notice was issued under section 106 of the Transfer of Property Act for eviction from the property but the defendant-petitioner did not vacate the suit shop on the basis of possession purchaser but the terms and conditions was fixed as per the agreement made earlier in the year of 1995, thus, the tenant is becoming an un-evictable tenant. The said plaintiff-opposite party requested the present defendant-petitioner to vacate the premises and lastly, on 04.05.2015, the opposite party (Landlord)

issued a legal notice under section 106 of the Transfer of Property Act for vacating or transfer of the suit property (shop) upon which the defendant did not vacate the possession of the suit premises (shop), thereafter, the defendant-petitioner filed the SCC Suit No. 02 of 2015.

Both the above facts were taken up by the learned Senior Assistant Judge and Small Cause Court, Sadar, Rangpur for hearing the parties and also considering the evidence adduced and produced by the parties in the respective 2 (two) suits. The learned Senior Assistant Judge and Small Cause Court, Sadar, Rangpur decreed both the suits on the similar ground.

Being aggrieved by the decision of the learned trial court these 2 (two) revisional applications were filed by the separate defendant-petitioners separately as per provision under section 25 of the Small Cause Courts Act, 1887 and those 2 (two) Rules were issued thereupon.

Mr. Ashfaque Rahman, the learned Advocate, appearing for the defendant-petitioners in both the cases/Rules, submits that the learned trial court has committed an error of law resulting in an error in the decision occasioning failure of justice by failing to understand the pleadings of the parties inasmuch as the

defendants while submitting written statement categorically asserted that they are non-ejectable tenants as they have paid huge amount of money for purchasing the possession of the land shops in question which is popularly known as “Salami” or “Premium” alternatively it was also pleaded that if the Landlord wants to evict them then the Landlord has to return the said “Salami” or “Premium” at the present market value with up to date interest, hence, the impugned judgment and decree is liable to be *set aside*.

The learned Advocate further submits that the present defendant-petitioners in both the Rules by both the petitioners paid Tk. 2,20,000/- (two lac twenty thousand) each at the time of the original tenancy agreement executed by and between the parties on 30.03.1991 and 01.04.1995 laying down the terms and conditions of the tenancy agreement for purchasing possession of these 2 (two) shops, as such, the defendant-petitioners in both the Rules are non-ejectable tenants, as such, the suit filed by the plaintiff-opposite party is illegal and violation of the terms and conditions of the above agreement, however, the learned Senior Assistant Judge and Small Cause Court, Sadar, Rangpur committed an error of law by decreeing the suits.

Both the Rules have been opposed by the present plaintiff-opposite party, Dr. Mahbub-E-Ilahi Khan Choudhury, in respect of the above 2 (two) Rules issued by this Court.

Mr. Md. Monowar Hossain, the learned Advocate, appearing for the opposite party in both the Rules, submits that the learned trial court decreed the suits being SCC Suit No. 02 of 2015 and SCC Suit No. 03 of 2015 and decreeing the suits on the basis of the evidence adduced and produced by the parties in the trial court but the present defendant-petitioners separately obtained the present Rules by misleading the court as to the existing facts and law on the ground that the tenants are non-ejectable as per the terms and conditions of the agreements by and between the parties, as such, the learned trial court committed no error of law by decreeing the suits and this court does not need to interfere upon the judgment and decree passed by the learned trial court.

The learned Advocate further submits that due to the demolition of the building owned by the present plaintiff-opposite party in both the Rules obtained a plan from the relevant authority of the Rangpur City Corporation to demolish the existing building to construct a 6<sup>th</sup>-storied building upon the



suit shops upon returning the price for purchasing possession in both the shops as per the agreement on 30.03.1991 and also 01.04.1995 for purchasing the possession and the present plaintiff-opposite party is agreeable to pay back the value of purchasing at Tk. 2,20,000/- (two lac twenty thousand) for each shop.

In view of the above, the learned trial court decreed the suits for ejectment of the present defendant-petitioners, as such, the learned trial court did not commit any error of law by passing the impugned judgment and decree in the above 2 (two) Rules, as such, these 2 (two) Rules are liable to be discharged.

Considering the above submissions made by the learned Advocates for the respective parties and also considering the revisional applications filed by the above 2 (two) petitioners along with the annexures therein, in particular, the impugned judgment of the learned trial court and also considering the important materials available in the lower court record, it appears to this court that the suit shops are situated at Mouza-Radha Ballave, Police Station-Kotwali, District Rangpur within the Rangpur City Corporation being shop Nos. 2 and 3 by the different defendant-petitioners but the same plaintiff-opposite

party. It appears to me that the defendant-petitioners are the tenants by executing 2 separate agreements containing that the tenants were required to obtain prior permission from the Landlord for changing any kind of structure but the defendant-petitioners without taking any prior permission constructed RCC Pillar in the shop premises in order to change or alter or any kind of construction of the suit shops. The tenants are required to obtain permission from the plaintiff-opposite party. The above 2 (two) agreements exhibited as Exhibits- 2 and 3 and also containing that the defendant-petitioners paid 2,20,000/- (two lac twenty thousand) each as the “Salami” or “Premium”. It also appears from both complaints that each of the suits is ejectable tenants upon serving notices to the defendant-petitioners by the Landlord. It further appears that the building known as “Mansur Bhaban” was subject to demolition by the Rangpur City Corporation in order to extend the road which caused serious damage to the building containing the above 2 (two) shops and the Landlord as the plaintiff-opposite party obtained approval plan for demolishing the existing building named as “Mansur Bhaban” due to demolished the structural RCC Pillars which also caused risky property for living, as such, all the other owners of

shops left the property as the risky condition of the building to live in there but the present defendant-petitioners did not leave the property on the basis of the claim that they are non-ejectable tenants as they have purchased the possession by giving above mentioned “Salami” or “Premium”.

In view of the above facts, the learned trial court decreed the suits filed by the present plaintiff-opposite party as the Landlord who filed the above 2 (two) SCC Suits, therefore, this court has to take a decision, whether, the learned trial committed an error of law.

I have carefully examined both the impugned judgments and decree passed by the learned trial court who has decreed the suits on the ground of the following common findings (in the SCC Suit No. 03 of 2015 and SCC Suit No. 02 of 2015):

....“অন্যদি-ক ডি. ডব্লিউ-১ জবানবন্দি-ত বাদীর নি-যথ অগ্রাহ্য ক-র নালিশী দোকা-ন আর.সি.সি. পিলার নির্মাণ করার দাবী অস্বীকার ক-র-ছেন। জেরায়ও বাদীর অনুমতি না নি-য় পিলার স্থাপন-র দাবী সরাসরি অস্বীকার ক-র-ছেন; কিন্তু জেরার আ-রক স্থ-ল আ-রক প্র-শ্ন স্বীকার ক-র-ছেন এই ম-র্ম ‘সত্য যে ঝুঁকিপূর্ণ থাকার কার-ণ আমার নালিশী দোকা-ন supporting pillar দি-য়ছি’। এ-তই প্রতীয়মান হয় বিবাদী বাদীর অনুমতি ব্যতী-র-ক পিলার স্থাপন ক-র-ছেন। তাছাড়া বিবাদী যে বাদীর অনুমতি নিয়ে পিলার স্থাপন করেছেন তা প্রমাণ করার নিমিত্ত কোন সাক্ষী বা সাক্ষ্য উপস্থাপন ক-র-ননি। উপরন্তু বাদী যেখা-ন বিবাদী-ক নালিশী দোকান

ত্যাগ করার জন্য লিগ্যাল নোটিশ প্রদান ক-র-ছেন সেখা-ন বিবাদী-ক পিলার স্থাপন করার অনুমতি বাদী দি-য়-ছেন- বিবাদীর এমন দাবী বিশ্বাস করার বাতুলতা কোন বাঙ্গালীর নিশ্চয়ই নেই।”....

And also on the ground that-

....“পি. ডব্লিউ-১ ডঃ মাহবুব-ই-ইলাহী খান -চাঁধুরী জবানবন্দি-ত দাবী ক-র-ছেন রংপুর সিটি ক-র্পা-রশ-নর রাস্তা সম্প্রসার-ণর জন্য নালিশী ভব-ন বাদীর অংশ ৩ টি পিলার ভেঙ্গে ফেলা হয়। এর ফলে নালিশী দোকানের ৬ ফিট ভেঙ্গে ফেলা হয়। সিঁড়িও ভেঙ্গে ফেলা হয় এবং তার অংশ কোন সিঁড়ি না থাকায় ২, ৩ ও ৪ তলা ব্যবহার অনুপ-যোগী হ-য় প-ড়। অন্যান্য তলার ভাড়াটিয়ারা ভবন ত্যাগ ক-র ঝুঁকির কার-ণ। এমতাবস্থায় বিবাদী চুক্তি বহির্ভূত অবকাঠা-মা নির্মাণ ক-র তা-দর ব্যবসা চালিয়ে যায়। চুক্তি ভঙ্গের ফলে তারা থানায় জি. ডি. করেন।”...

In view of the above 2 (two) findings in the impugned judgments and decrees passed by the learned Senior Assistant Judge and Small Cause Court, Sadar, Rangpur, I found the common grounds taken by the learned trial court as to whether the tenants as the present defendant-petitioners have violated the terms and conditions of the respective agreements by and between the present defendant-petitioners and the present plaintiff-opposite party which has been exhibited in the lower court record and I am considering that the tenants have violated the terms and conditions of the tenancy agreements that the present petitioners are obliged to vacate the suit property as to

the demolition caused by the Rangpur City Corporation for extending road.

I have also considered the agreements that the tenants must be obliged to take prior permission for changing or constructing anything within the shops or around the shops but in the instant case the defendant-petitioners did not take any prior permission for constructing the RCC Pillar by themselves. The learned Assistant Judge and Small Cause Court, Sadar, Rangpur considered the above matters, particularly, being risky (ঝুঁকিপূর্ণ হওয়ায়) condition of the building and also causing damage to the stairs up to 4<sup>th</sup>-floor of the building, as such, the present defendant-petitioners are liable to be ejected from the suit premises considering the situation prevailing after the demolition by the Rangpur City Corporation.

In the above circumstances, I consider that the learned trial court did not commit any error or failed to consider the evidence adduced and produced by the parties in the court. I, therefore, consider that these 2 (two) Rules are not proper cases for interference from this court.

Accordingly, I do not find merit in both Rules.

In the result, the Rules issued by this court in the Civil Revision No. 1198 of 2020 and also Civil Revision No. 1195 of 2020 are hereby discharged.

However, the above decision of this court, the present plaintiff-opposite party is hereby directed to refund the amount deposited at the time of agreements executed by and between them as amounting to Tk. 2,20,000/- (two lac twenty thousand) each as per the term of the contract entered between the parties at the different dates within 1 (one) month {thirty days} from the date of the receipt of this judgment and order.

The present defendant-petitioners are hereby directed to evict/vacate the respective shops after receiving the said deposited “Salami” or “Premium” money within the above mentioned 1 (one) month time.

The interim order of stay passed at the time of issuance of both Rules as in the Civil Revision No. 1198 of 2020 and also in the Civil Revision No. 1195 of 2020 and subsequently the same were extended from time to time are hereby recalled and vacated.

The concerned section of this court is hereby directed to send down the lower court record along with a copy of this judgment and order to the concerned trial court immediately.